

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 24, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV01498

SWEETMAN v. CITY OF WATSONVILLE, et al.

**DEFENDANT CITY OF WATSONVILLE’S MOTION FOR RELIEF FROM
GOOD FAITH SETTLEMENT DETERMINATION**

The motion is granted in part. The Court vacates its March 23, 2026, Order Determining Good Faith Settlement on the grounds that defendant City of Watsonville was not afforded notice of the application. Applicant J&E Property Group, LLC admits it inadvertently sent that application to the wrong address for the City’s defense counsel.

Applicant J&E Property Group, LLC may re-file a noticed motion for good faith settlement in accordance with the Rules of Court and Santa Cruz County Superior Court Local Rules.

**(UNOPPOSED) DEFENDANT CITY OF WATSONVILLE’S SECOND MOTION
TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA BY
PERCIPIENT WITNESS, SIOBHAN ESKELSEN, AND FOR MONETARY
SANCTIONS**

The unopposed motion is granted.

This case relates to a trip and fall on a sidewalk near 351 Main Street in Watsonville. Defendant City of Watsonville seeks to take the deposition of Siobhan Eskelsen, plaintiff’s sister, who was with her when she fell and with whom plaintiff resides. Initially, defendant properly noticed the deposition several times and personally served Ms. Eskelsen; the final noticed date being November 17, 2025. Ms. Eskelsen failed to appear, claiming health issues

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 24, 2026 TIME: 8:30 A.M.

prevented her from being deposed. Her doctor's note did not state she could not be deposed in the future, did not identify any chronic or persistent health concerns, and did not limit her ability to appear to November 17, 2025.

Following that non-appearance, this Court granted defendant's motion to compel compliance with the subpoena, ordering Ms. Eskelen to appear for deposition within 30 days of the hearing (February 2, 2026). She sat for deposition on March 12, 2026, but it lasted just 22 minutes and her testimony was not completed due to her stated panic attack. In the 22-minute deposition, defense counsel elicited direct testimony regarding the incident, but questions regarding Ms. Eskelen's observations of her sister's medical condition were interrupted. (Moreno Declaration, Exhibit L.)

Siobhan Eskelsen, 500 Cloudview Drive, Watsonville, shall appear for deposition within 30 days of the hearing on this matter. The deposition is to be completed and shall last no more than one (1) hour. The Court declines to impose monetary sanctions against Ms. Eskelsen.

Plaintiff failed to file any timely opposition to the motion, and such failure may be interpreted by the Court as a concession to the merits of the motion. (*D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728, n. 4; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)